

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

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RAFAEL LAUREANO JR., as Administrator of the Estate
of RAFAEL LAUREANO SR., and RAFAEL LAUREANO
JR., individually,

Plaintiff,

-against-

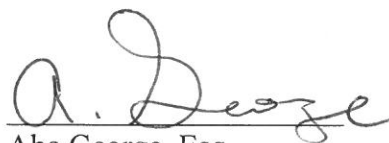
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ERIN
FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG
(FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST
NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME
UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE
DOES, police officers and or detective employees of the New
York City Police Department, the identity and number of
whom is presently unknown,

Defendants.
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To the Above Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer on the Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 30, 2015



Abe George, Esq.
Attorney for Plaintiff
44 Wall Street, 2nd Floor
New York, N.Y. 10005
212-498-9803

Index No.:

Plaintiff designates Kings County
as the place of trial.

The basis of venue is CPLR
§504(3) and County of
Plaintiff's residence.

SUMMONS

To:
P.O. ERIN FRAWLEY,
SGT JOHN HENDERSON,
SGT. TSANG (FIRST NAME UNKNOWN),
SGT. GOLDEN (FIRST NAME UNKNOWN),
SGT. CHISHOLM (FIRST NAME UNKNOWN),
& DET. LOUIS YERO,
c/o Legal Department
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

CITY OF NEW YORK
c/o New York City Law Department
100 Church Street
New York, New York 10007

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X Index No.:
RAFAEL LAUREANO JR., as Administrator of the Estate
of RAFAEL LAUREANO SR., and RAFAEL LAUREANO
JR., individually,

Plaintiff,

-against-

COMPLAINT

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ERIN
FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG
(FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST
NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME
UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE
DOES, police officers and or detective employees of the New
York City Police Department, the identity and number of
whom is presently unknown,

Defendants.

-----X

Plaintiff, by their attorney, ABE GEORGE, ESQ., complaining of the defendants herein,
upon information and belief, respectfully show to this Court, and allege as follows:

1. This action arises out of a claim that on or around September 29, 2014, in Kings
County, members of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") negligently
shot and killed decedent RAFAEL LAUREANO SR. and then attempted to cover up the shooting
by fabricating official police reports, and leaking information to the media to blame another
civilian for RAFAEL LAUREANO SR.'s death.

JURISIDCTION AND VENUE

2. Jurisdiction is proper pursuant to CPLR § 301. Venue for this action is placed in
the County of Kings because that is the County where the cause of action arose pursuant to CPLR
504(3) and, in the alternative, it is the County where Plaintiff resides.

THE PARTIES

3. That at the time of his death on September 29, 2014, and at all times hereinafter decedent RAFAEL LAUREANO SR. was a resident of Kings County in the State of New York.

4. RAFAEL LAUREANO JR. is the biological son of the decedent RAFAEL LAUREANO SR.

5. RAFAEL LAUREANO JR. is a resident of Kings County.

6. On or around January 14, 2015, prior to the commencement of this action, RAFAEL LAUREANO JR. was appointed administrator with letters of limited administration for the Estate of RAFAEL LAUREANO SR. by Order of the Honorable Margarita A. Lopez Torres, a Surrogate of the County of Kings.

7. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned was a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

8. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

9. That on or around September 29, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT ("NYPD"), employed POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE DOES, New York Police Department officers, which includes any rank and or classification (e.g. sergeants, lieutenants, inspectors etc.) and or detectives, the

identity and number of whom is presently unknown, as agents, servants and/or employees (hereinafter “unknown police officers and or detectives”).

NOTICE OF CLAIM

10. That prior hereto on November 12, 2014, and within the time prescribed by law, sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff’s demands for adjustment or payment thereof.

11. On March 19, 2015, RAFAEL LAUREANO JR. testified at a statutory 50-H hearing pursuant to the General Municipal Law.

12. Thereafter March 19, 2015, the CITY OF NEW YORK refused or neglected up to the commencement of this action to make any adjustment or payment thereof.

FACTUAL ALLEGATIONS

13. Upon information and belief, on or around September 29, 2014, Katarzyna (“a.k.a. Kathy”) Russo lived in an apartment inside of the premises known as 820 Ocean Parkway, County of Kings, City and State of New York.

14. On or around September 29, 2014, RAFAEL LAUREANO SR. was a friend of Kathy Russo.

15. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, Kathy Russo was inside of her apartment at 820 Ocean Parkway being attacked by her knife wielding ex-boyfriend 47-year-old Francisco Carvajal.

16. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, JOHN AND JANE DOES, unknown police officers and or detectives, responded to a domestic disturbance 911 call outside of the apartment of Kathy Russo.

17. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, RAFAEL LAUREANO SR. was lawfully present outside of Kathy Russo's apartment when JOHN AND JANE DOES, unknown police officers and or detectives, arrived to respond to a domestic disturbance 911.

18. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, JOHN AND JANE DOES, unknown police officers and or detectives, asked former body builder RAFAEL LAUREANO SR. to help break down the door of Kathy Russo's apartment.

19. Upon information and belief, JOHN AND JANE DOES, unknown police officers and or detectives, violated NYPD protocol, and commonly accepted law enforcement practices, by asking RAFAEL LAUREANO SR. for help in breaking down the door of Ms. Russo.

20. Upon information and belief, JOHN AND JANE DOES, unknown police officers and or detectives, did not use a police battering ram, nor did they seek the assistance of the Emergency Services Unit of the NYPD to assist in breaking down Ms. Russo's door.

21. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, JOHN AND JANE DOES, unknown police officers and or detectives, used former body builder RAFAEL LAUREANO SR. to break down Ms. Russo's door.

22. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, the door to Ms. Russo's apartment was broken down, whereupon RAFAEL LAUREANO SR. and JOHN AND JANE DOES, unknown police officers and or detectives, entered Ms. Russo's apartment.

23. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, JOHN AND JANE DOES, unknown police officers and or detectives, failed to prevent

RAFAEL LAUREANO SR. from entering an active crime scene that was occurring in Ms. Russo's apartment.

24. Upon information and belief, on or around September 29, 2014, JOHN AND JANE DOES, unknown police officers and or detectives, fired numerous shots inside of Ms. Russo's apartment, hitting both perpetrator Francisco Carvajal and bystander RAFAEL LAUREANO SR.

25. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, inside of the apartment of Kathy Russo, neither perpetrator Francisco Carvajal nor bystander RAFAEL LAUREANO SR. were armed with firearm(s).

26. RAFAEL LAUREANO SR. did not have any weapon during the aforementioned incident.

27. The only people with firearms in the aforementioned incident were JOHN AND JANE DOES, unknown police officers and or detectives.

28. Upon information and belief, on or around September 29, 2014, Francisco Carvajal succumbed to gunshot wounds sustained at the hands of JOHN AND JANE DOES, unknown police officers and or detectives.

29. Upon information and belief JOHN AND JANE DOES, unknown police officers and or detectives, failed to render adequate medical aid to RAFAEL LAUREANO SR.

30. At no time during the events described above or as the events occurred did the Defendant JOHN AND JANE DOES, unknown police officers and or detectives, have probable cause to discharge their firearms at RAFAEL LAUREANO SR.

31. Defendants JOHN AND JANE DOES, unknown police officers and or detectives, were in no danger of imminent death or serious physical injury by RAFAEL LAUREANO SR.

32. Defendants JOHN AND JANE DOES, unknown police officers and or detectives, were not acting in self-defense in shooting and killing RAFAEL LAUREANO SR.

33. Upon information and belief the aforementioned shooting was performed without reason or provocation.

34. Upon information and belief, the aforementioned shooting was performed knowingly, intentionally, and willfully.

35. Upon information and belief, the aforementioned shooting was performed negligently and or recklessly.

36. On or around September 29, 2014, RAFAEL LAUREANO SR. died due to a gunshot wound fired by JOHN AND JANE DOES, unknown police officers or detectives, employed by the NEW YORK CITY POLICE DEPARTMENT.

37. Upon information and belief on or around September 29, 2014, SGT. GOLDEN (FIRST NAME UNKNOWN), was one of the supervisors on scene to respond to the aforementioned shooting.

38. The actions of JOHN AND JANE DOES, unknown police officers and or detectives, were performed within the scope of their employment and authority for whose acts of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, are liable under the doctrine of respondent superior.

39. Upon information and belief by reason of said shooting RAFAEL LAUREANO SR. was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

40. Upon information and belief, after the shooting of RAFAEL LAUREANO SR. POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST

NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO and other JOHN AND JANE DOES, unknown police officers and or detectives, of the NEW YORK CITY POLICE DEPARTMENT, conspired to lie to the family members of RAFAEL LAUREANO SR. about the manner and circumstances surrounding RAFAEL LAUREANO SR.'s death.

41. On or around September 30, 2014, there were published media reports, citing anonymous law enforcement sources, stating RAFAEL LAUREANO SR. had died because of knife wounds suffered at the hands of perpetrator Francisco Carvajal.

42. Upon information and belief, POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), and JOHN AND JANE DOES, unknown police officers and or detectives, were responsible with fabricating an official NYPD Police Complaint Report 2014-070-07597, which stated in sum and substance that RAFAEL LAUREANO SR. was stabbed by Francisco Carvajal with a knife in the torso, and that he succumbed to this injury. EXHIBIT A: COMPLAINT REPORT

43. Upon information and belief, after the shooting of RAFAEL LAUREANO SR., DET. LOUIS YERO lied to RAFAEL LAUREANO JR., stating that his father RAFAEL LAUREANO SR. was killed because of knife wounds suffered at the hands of Francisco Carvajal.

44. On or around October 1, 2014, the Office of the Chief Medical Examiner had concluded that RAFAEL LAUREANO SR. **had not sustained any stab wounds** and had died as a result of one gunshot wound to the back.

45. The only people firing weapons inside of Ms. Russo's apartment on September

29, 2014, were New York City Police Officers.

46. On or around October 1, 2014, Deputy Commissioner Stephen Davis, NYPD's spokesman unequivocally admitted that RAFAEL LAUREANO SR. "was inadvertently shot by a police bullet." Davis further stated "it was very close quarters, Carvajal was coming at the officers with a knife and they had to fire." Mr. Davis admitted three officers (JOHN AND JANE DOES) fired more than a dozen times, hitting both men. See EXHIBIT B: J. David Goodman, Officers Fatally Shot Man Who Intervened in a Fight, New York Times, October 2, 2014, at A29.

47. Upon information and belief, the firing of a dozen shots in Ms. Russo's close confined space was excessive and violated not only NYPD protocol but also commonly accepted law enforcement practices.

48. Specifically, in shooting and killing RAFAEL LAUREANO SR. officers violated New York City Police Department Procedure No. 203-12, entitled "Deadly Physical Force," which sets forth the guidelines for the use of firearms. The relevant guidelines state that:

- a. Police officers shall not use deadly physical force against another person unless they have probable cause to believe that they must protect themselves or another person present from imminent death or serious physical injury.*
- b. Police officers shall not discharge their weapons when doing so will unnecessarily endanger innocent persons.*

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF RAFAEL LAUREANO
JR., AS THE ADMINISTRATOR OF THE ESTATE OF RAFAEL LAUREANO SR.
FOR WRONGFUL DEATH**

49. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. That on or around September 29, 2014, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, RAFAEL LAUREANO SR. was lawfully at the aforesaid location when he was caused to be shot resulting in his death by JOHN AND JANE DOES, unknown police officers and or detectives, who were acting within their scope of employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

51. That the shooting of the decedent plaintiff, RAFAEL LAUREANO SR. was without probable cause.

52. The aforementioned shooting was performed knowingly, intentionally and willfully.

53. The aforementioned shooting was performed negligently and recklessly.

54. The aforementioned shooting was performed without reason or provocation.

55. The aforementioned shooting violated NYPD protocol but also commonly accepted law enforcement practices.

56. Had RAFAEL LAUREANO SR. survived he would have been able to sue the NEW YORK CITY POLICE DEPARTMENT for civil rights violations, negligence, assault, battery, and intentional infliction of emotional distress.

57. RAFAEL LAUREANO SR. is survived by four children or distributees, including RAFAEL LAUREANO JR., the biological son of the decedent.

58. RAFAEL LAUREANO SR. was providing financial support for some and or all of his children, and these distributees have suffered pecuniary loss in that they are no longer receiving income from their father as a result of his death.

59. On January 14, 2015, RAFAEL LAUREANO JR. was appointed administrator

with limited letters of administration for his father's estate, and is bringing this lawsuit on behalf of himself and his father RAFAEL LAUREANO SR.

60. By reason of the foregoing, the Plaintiff RAFAEL LAUREANO JR., as the proposed administrator of the Estate of RAFAEL LAUREANO SR., demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and JOHN AND JANE DOES, unknown police officers and or detective employees, of the New York City Police Department, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND AND THIRD CAUSES OF ACTION
ON BEHALF OF RAFAEL LAUREANO SR.
FOR ASSAULT AND BATTERY**

61. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "60" inclusive with the same force and effect as if more fully set forth at length herein.

62. That on or around September 29, 2014, and at all times hereinafter mentioned and upon information and belief, RAFAEL LAUREANO SR. was present inside of the premises known as 820 Ocean Parkway, County of Kings, City and State of New York.

63. That on or around September 29, 2014, and at all times hereinafter mentioned and upon information and belief, RAFAEL LAUREANO SR. was negligently shot in the back without reason or provocation, resulting in his death, by JOHN AND JANE DOES, unknown police officers and or detectives, who were acting within their scope of employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

64. Upon information and belief, Defendant JOHN AND JANE DOES, unknown police officers and or detectives, intentionally acted to place RAFAEL LAUREANO SR. in apprehension of imminent harmful or offensive bodily contact.

65. Upon information and belief, RAFAEL LAUREANO SR. suffered offensive bodily contact by sustaining a gunshot wound to the back, at the hands of JOHN AND JANE DOES, unknown police officers and or detectives.

66. Defendants, JOHN AND JANE DOES, unknown police officers and or detectives, knowingly, intentionally and willfully made bodily contact with RAFAEL LAUREANO SR. by shooting him.

67. RAFAEL LAUREANO SR. suffered a gunshot wound to the back by JOHN AND JANE DOES, unknown police officers and or detectives, which resulted in his death.

68. By reason of said assault and battery, RAFAEL LAUREANO SR. was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

69. By reason of the foregoing, the Plaintiff, RAFAEL LAUREANO JR., as the administrator of the estate of RAFAEL LAUREANO SR., demands judgment for assault and battery against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and JOHN AND JANE DOES, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
RAFAEL LAUREANO JR., AS ADMINISTRATOR OF
THE ESTATE OF RAFAEL LAUREANO SR.
FOR NEGLIGENCE**

70. The Plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "69" inclusive with the same force and effect as if more fully set forth at length herein.

71. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, JOHN AND JANE DOES, unknown police officers and or detectives, asked and or enlisted the help of former body builder RAFAEL LAUREANO SR. to help break down the apartment door of Ms. Russo.

72. Upon information and belief, on or around September 29, 2014, at approximately 7:20PM, the door to Ms. Russo's apartment was broken down, whereupon RAFAEL LAUREANO SR. and JOHN AND JANE DOES, unknown police officers and or detectives, entered Ms. Russo's apartment.

73. As a result of the aforesaid, JOHN AND JANE DOES, unknown police officers and or detectives, who were acting within their scope of employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, owed a duty to RAFAEL LAUREANO SR., to protect him from danger.

74. Defendants, JOHN AND JANE DOES, unknown police officers and or detectives, breached their duty to protect RAFAEL LAUREANO SR. by allowing RAFAEL LAUREANO SR. to enter Ms. Russo's apartment and also breached their duty to protect him by intentionally, knowingly, recklessly, carelessly and or negligently, shooting RAFAEL LAUREANO SR. in the back, which ultimately caused his death.

75. Defendants, JOHN AND JANE DOES, unknown police officers and or detectives, by breach of their duty to protect RAFAEL LAUREANO SR. was the proximate cause of RAFAEL LAUREANO SR.'s death.

76. Upon information and belief, rather than enlist RAFAEL LAUREANO SR. for

assistance, Defendants JOHN AND JANE DOES, should have either: used a police battering ram, and/or called the Emergency Services Unit, and/or called other fellow officers for help in either breaking down Ms. Russo's door, or securing the location to prevent bystanders such as RAFAEL LAUREANO SR. from entering an active crime scene.

77. RAFAEL LAUREANO SR.'s death resulted from negligence, including but not limited to, negligence in training, hiring, supervision and retention of the police officers/detectives involved in this incident; in failing to observe the existing police department protocols for police officers/detectives designed to govern the use of deadly lethal force causing the serious injuries both physical and emotional resulting in death, and further, deprived plaintiff's and decedent's civil rights, privileges and immunities secured under the Constitutions of the United States of America and State of New York; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers/detectives; failing to properly investigate their background; in failing to train and instruct police officers/detectives; in failing to give police officers/detectives proper instructions on the use of force, use of firearms including proper discharge of said weapons, use of firearms when other officers are also discharging their weapons, more specifically with regards to their training as to the use of firearms in public; improperly supervised police officers/detectives in the field, including the police officers/detectives as well as in the staffing; in failing to properly have a tactical plan in place so as to not put the decedent plaintiff RAFAEL LAUREANO SR. at risk which allowed the shooting of said decedent plaintiff which resulted in his death.

78. As the result of said negligence, the decedent plaintiff, RAFAEL LAUREANO SR. was caused to suffer severe physical injuries and pain and suffering resulting in death,

including pre-death pain and suffering; emotional and psychological distress and horror.

79. By reason of the foregoing, the Plaintiff, RAFAEL LAUREANO JR., as the proposed administrator of the estate of RAFAEL LAUREANO SR., demands judgment for negligence against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and JOHN AND JANE DOES, unknown police officers and or detectives of the New York City Police Department, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF RAFAEL LAUREANO
JR., AS ADMINISTRATOR OF THE ESTATE OF RAFAEL LAUREANO SR.
FOR NEGLIGENT HIRING AND RETENTION**

80. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "79" inclusive with the same force and effect as if more fully set forth at length herein.

81. Defendants did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees and were negligent in the hiring, training and retention of JOHN AND JANE DOES, unknown police officers and or detectives, who assaulted, battered and improperly fired a weapon on RAFAEL LAUREANO SR.

82. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the JOHN AND JANE DOES, unknown police offices and or detectives, and continued to employ them and allowed them to be in contact with the public at large.

83. By reason of the foregoing, the Plaintiff, RAFAEL LAUREANO JR., as the

proposed administrator of the estate of RAFAEL LAUREANO SR., demands judgment for negligent hiring and retention against the defendants, THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF RAFAEL LAUREANO
JR., AS ADMINISTRATOR OF THE ESTATE OF RAFAEL LAUREANO SR.
FOR CIVIL RIGHTS VIOLATIONS**

84. The Plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "83" inclusive with the same force and effect as if more fully set forth at length herein.

85. That at all times hereinafter mentioned, defendants POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE DOES (unknown police officers and or detectives), engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officers and under the color and authority of State law, regulation, ordinance, custom, and usage.

86. On or around September 29, 2014, Defendants JOHN AND JANE DOES, unknown officers and detectives, created the danger for which they were supposed to protect RAFAEL LAUREANO SR. from, when they asked for his help to break down the door of Ms. Russo.

87. On or around September 29, 2014, Defendants JOHN AND JANE DOES, unknown officers and detectives, also failed to stop RAFAEL LAUREANO. SR. from entering the zone of danger of an active crime scene.

88. After the shooting of RAFAEL LAUREANO SR., DET LOUIS YERO lied to RAFAEL LAUREANO JR. about the cause of his father's death.

89. Upon information and belief, POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), and other JOHN AND JANE DOES (unknown officers and or detectives), aided by each other, fabricated a police report (EXHIBIT A) that stated RAFAEL LAUREANO SR. was stabbed to death by Francisco Carvajal when in fact defendants knew RAFAEL LAUREANO SR. had not been stabbed and had in fact been shot by JOHN AND JANE DOES, unknown police officers and or detectives,

90. The aforesaid actions of POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO and JOHN AND JANE DOES (unknown officers and or detectives), shows a tacit conspiracy to cover up negligent and or reckless action of JOHN AND JANE DOES (unknown officers and or detectives), unknown police officers and or detectives, all designed to maintain a "Blue Wall of Silence" to prevent the family of learning the truth of what happened to RAFAEL LAUREANO SR.

91. The aforesaid actions of POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO and JOHN AND JANE DOES (unknown officers and or detectives), represents an obstruction of justice.

92. That such actions served to deprive the decedent plaintiff, RAFAEL LAUREANO

SR. of the rights and privileges of the United States Constitution, the Fourth (4th) and Fourteenth (14th) Amendment of the U.S. Constitution and 42 U.S.C. § 1983. In particular, RAFAEL LAUREANO SR. was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and ultimately to the most fundamental right -his right to life.

93. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, has as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct it's police officers, including the officers at the scene in this case, regarding the protection of the constitutional rights of citizens.

94. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officers' unlawful conduct described above, and was the approximate cause of the violations of the decedent plaintiff, RAFAEL LAUREANO SR.'s rights on the evening of September 29, 2014.

95. By reason of the foregoing, the Plaintiff, RAFAEL LAUREANO JR., as the proposed administrator of the Estate of RAFAEL LAUREANO SR, demands judgment for civil rights violation against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ERIN FRAWLEY, SGT JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE DOES (unknown police officers and or detectives), in a sum exceeding the jurisdictional limits of all the lower courts.

96. The conduct of Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ERIN FRAWLEY, SGT. JOHN HENDERSON, SGT. TSANG (FIRST NAME UNKNOWN), SGT. GOLDEN (FIRST NAME UNKNOWN), SGT. CHISHOLM (FIRST NAME UNKNOWN), DET. LOUIS YERO, and JOHN AND JANE DOES (unknown police officers and or detectives) warrants punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF RAFAEL LAUREANO JR., AS ADMINISTRATOR OF THE ESTATE OF RAFAEL LAUREANO SR.
FOR ATTORNEY'S FEES**

97. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "96" inclusive with the same force and effect as if more fully set forth at length herein.

98. That the actions of all defendants, heretofore described, resulting from the September 29, 2014, shooting and cover up of RAFAEL LAUREANO SR.'s death deprived Plaintiff of rights, privileges, and immunities as guaranteed under the Fourth and Fourteenth Amendment of the United States Constitution, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.

99. That the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to policies and customs concerning the hiring, training, supervision, retention and discipline of Defendant CITY OF NEW YORK, AND NEW YORK CITY POLICE DEPARTMENT's agents, servants and/or employees, and those involving the use of deadly force.

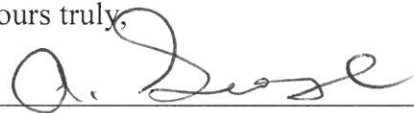
100. That in the event that plaintiff is successful in the prosecution of the aforesaid

claim(s), plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and be entitled to the recovery of said attorneys' fees from the defendants.

WHEREFORE, plaintiff, RAFAEL LAUREANO JR., as administrator of the estate of RAFAEL LAUREANO SR., demands judgment against all the aforesaid Defendants in an amount exceeding the jurisdictional limits of all lower Courts on the First through the Sixth Causes of Action, in an aggregate amount of not lower than **\$25,000,000 (TWENTY-FIVE - MILLION DOLLARS)**.

DATED: New York, New York
June 30, 2015

Yours truly,

A handwritten signature in dark ink, appearing to read 'A. George', written over a horizontal line.

ABE GEORGE, ESQ.
Attorney for Plaintiff
44 Wall Street, 2nd Floor
New York, New York 10005
(212) 498-9803

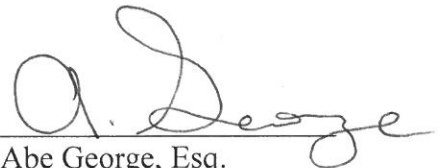
ATTORNEY'S VERIFICATION BY AFFIRMATION

ABE GEORGE, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for the Plaintiff and I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff is because the Plaintiff is not presently in the county wherein I maintain my office.

Dated: New York, New York
June 30, 2015

A handwritten signature in cursive script, appearing to read 'A. George', written over a horizontal line.

Abe George, Esq.
Attorney for Plaintiff
44 Wall Street, 2nd Floor
New York, N.Y. 10005
212-498-9803

EXHIBIT A

EXHIBIT A



New York City Police Department

Omni-form System - Complaints

Report Cmd: 070	Jurisdiction: N.Y. POLICE DEPT	Record Status: Final, No Arrests	Complaint #: 2014-070-07597
Occurrence Location: INSIDE OF 820 OCEAN PARKWAY APT: 714 Name Of Premise: Premises Type: RESIDENCE - APT. HO Location Within Premise: APARTMENT Visible By Patrol?: NO		NYC Parks Dept. Property Did this offense occur on NYC Parks Dept. Property? NO Command: NYC Parks Dept. Property Name:	Precinct: 070 Sector: E Beat: 9 Post:
Occurrence From: 2014-09-29 19:20 MONDAY Occurrence thru: 2014-09-29 19:30 Reported: 2014-09-29 23:45 Complaint Received: RADIO			Aided # 000002050 Accident # O.C.C.B. #
Classification: HOMICIDE Attempted/Completed: COMPLETED Most Serious Offense Is: FELONY PD Code: 139 MURDER, UNCLASSIFIED PL Section: 12527 Keycode: 101 MURDER & NON-NEGL. MANSLAUGHTER		Case Status: OPEN Unit Referred To: P.D.U. Clearance Code: Log/Case #: 0 File #: 1 Prints Requested? NO	
Is This Related To Stop And Frisk Report NO	SQF Number: 0000-000-00000	Was The Victim's Personal Information Taken Or Possessed? NO	Was The Victim's Personal Information Used To Commit A Crime? NO
Gang Related? NO	OCCB FOD Log #:	Name Of Gang:	Child Abuse Suspected? NO
DIR Required? NO	Child in Common? NO	Intimate Relationship? NO	
If Burglary: Forced Entry? Structure: Entry Method: Entry Location:	Alarm: Bypassed? Comp Responded?: Company Name/Phone: Crime Prevention Survey Requested?: Complaint/Reporter Present?:	If Arson: Structure: Occupied?: Damage by:	Taxi Robbery: Partition Present: Amber Stress Light Activated: Method of Conveyance: Location of Pickup:
Supervisor On Scene - Rank / Name / Command : SGT GOLDEN 070		Canvas Conducted: NO	Translator(if used):
NARRATIVE: AT T/P/O, C/V WAS STABBED BY PERP WITH KNIFE IN THE TORSO, CAUSING HIM TO SUCCUMB TO HIS INJURIES. SGT TSANG REVIEWED.			
No NYC TRANSIT Data for Complaint # 2014-070-07597			
Total Victims: 1	Total Witnesses: 0	Total Reporters: 0	Total Wanted: 1
VICTIM: # 1 of 1		Name: LAUREANO, RAFAEL	Complaint #: 2014-070-07597

Nick/AKA/Maiden: RALPH UMOS: NO Sex/Type: MALE Race: WHITE Age: 51 Date Of Birth: 09/22/1963 Disabled? NO Is this person not Proficient in English?: NO If Yes, Indicate Language: N.Y.C.H.A Resident? NO Is Victim fearful for their safety / life? NO Escalating violence / abuse by suspect? NO Were prior DIR's prepared for C/V? NO	Gang/Crew Affiliation: Name: Identifiers: Will View Photo: NO Will Prosecute: NO Notified Of Crime Victim Comp. Law: NO
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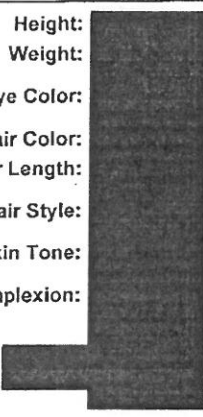
<u>LOCATION</u>	<u>ADDRESS</u>	<u>CITY</u>	<u>STATE/COUNTRY</u>	<u>ZIP</u>	<u>APT/ROOM</u>
HOME-PERMANENT	1812 EAST 18 STREET	BROOKLYN	NEW YORK		1A

Phone #: HOME: Not Provided/Unavailable CELL: Not Provided/Unavailable BUSINESS:Not Provided/Unavailable E-MAIL: Not Provided/Unavailable

Action against Victim: CUT/SLASHED/STABBED	Actions Of Victim Prior To Incident: DISPUTE
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Victim Of Similar Incident:	If Yes, When And Where
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WANTED: # 1 of 1	Name: CARVAJAL, FRANCISCO	Complaint#: 2014-070-07597	Arrested: NO
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Nick/AKA/Maiden: Sex: Race: Age: Date Of Birth: U.S. Citizen: Place Of Birth: Is this person not Proficient in English?: If Yes, Indicate Language: Accent:		Height: Weight: Eye Color: Hair Color: Hair Length: Hair Style: Skin Tone: Complexion:		Order Of Protection: NO Issuing Court: Docket #: Expiration Date: Order of Protection Violated? Does Suspect abuse Drugs / Alcohol? NO Suspect threatened /attempted suicide? NO Is the suspect Parole / Probation? NO Relation to Victim: UNKNOWN/NONE Living together: NO Can be Identified: YES
Gang/Crew Affiliation: Name: Identifiers:				

<u>LOCATION</u>	<u>ADDRESS</u>	<u>CITY</u>	<u>STATE/COUNTRY</u>	<u>ZIP</u>	<u>APT/ROOM</u>	<u>HOW LONG?</u>	<u>RES. PCT</u>
							

Phone #:

N.Y.C.H.A. Resident: NO N.Y.C. Housing Employee: On Duty: Development: N.Y.C. Transit Employee:
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Physical Force:

Weapons:

Gun: Weapon Used/Possessed: USED/DISPLAYED Non-Firearm Weapon: CUTTING INSTRUMENT Other Weapon Description: KNIFE	Make: Caliber: Color: Type:	Recovered: NO Serial Number Defaced: Serial Number:
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Other/Gun Specify:
Discharged: NO

Used Transit System:
Station Entered:
Time Entered:
Metro Card Type:
Metro Card Used/Poses:
Card #:

<u>CRIME DATA</u>	<u>DETAILS</u>
MODUS OPERANDI	UNKNOWN
ACTIONS TOWARD VICTIM	STABBED OR CUT
CLOTHING	ACCESSORIES -SWEAT / JOGGING CLOTHES -BLACK
CLOTHING	FOOTWEAR -SNEAKERS -BLACK
CLOTHING	HEADGEAR -UNK -UNKNOWN COLOR
CLOTHING	OUTERWEAR -UNK -UNKNOWN COLOR
CHARACTERISTICS	UNKNOWN
BODY MARKS	-UNKNOWN
BODY MARKS	-UNKNOWN
IMPERSONATION	UNKNOWN

No IMEI Data for Complaint # 2014-070-07597

Reporting/Investigating M.O.S. Name: POF FRAWLEY ERIN	Tax #: [REDACTED]	Command: PBBKS	Rep.Agency: NYPD
Supervisor Approving Name: SGT HENDERSON JOHN	Tax #: [REDACTED]	Command: 070 PCT	Rep.Agency: NYPD
Complaint Report Entered By: PAA HARRIS	Tax #: [REDACTED]	Command: 070 PCT	Rep.Agency: NYPD
Signoff Supervisor Name: SGT CHISOLM	Tax #: [REDACTED]	Command: 070 PCT	Rep.Agency: NYPD

END OF COMPLAINT REPORT
2014-070-07597

Print this Report

EXHIBIT B

EXHIBIT B



The New York Times <http://nyti.ms/1nOeVws>

N.Y. / REGION

Officers Fatally Shot Man Who Intervened in a Fight

By J. DAVID GOODMAN OCT. 1, 2014

An unarmed man who thrust himself into a confrontation between police officers and a knife-wielding assailant in a Brooklyn apartment died from a bullet wound to the back after the police opened fire, the New York City medical examiner said on Wednesday.

The man, Rafael Laureano, had pushed his way past officers to confront the assailant, Francisco Carvajal, who also died in the shooting on Monday.

“It looks like he was inadvertently hit,” Stephen Davis, the Police Department’s top spokesman, said of Mr. Laureano. He declined to identify the three officers who fired.

The police had initially said that Mr. Laureano was stabbed before officers arrived and that he died from those wounds. However, an autopsy on Wednesday found no stab wounds to his body.

The chaotic scene began a little before 7 p.m., when Mr. Carvajal, 47, came to the apartment of his former girlfriend, Kathy Russo. At first she barred his entry, Mr. Davis said, and called her friend, Mr. Laureano, 52, who came to the apartment.

When Mr. Carvajal returned, she opened the door to tell him to leave, but he pulled out a knife and pushed his way in, Mr. Davis said. He said that Mr. Carvajal and Mr. Laureano grappled as Ms. Russo, 35, locked herself and her children in a bathroom.

At some point, Mr. Laureano fled. In the hallway, he met police officers — a sergeant and four patrol officers — responding to 911 calls of a woman being attacked with a knife.

Inside, Ms. Russo could be heard screaming as Mr. Carvajal hacked at the bathroom door, broke through one panel and reached inside. Ms. Russo knocked the knife from his hand, Mr. Davis said, and used it to cut his arm and chest. But Mr. Carvajal had a second knife, Mr. Davis said.

The police burst through the apartment door and Mr. Laureano rushed in before they could stop him, Mr. Davis said.

“Drop the knife, drop the knife,” officers yelled at Mr. Carvajal as he moved toward Mr. Laureano, Mr. Davis said. Then Mr. Carvajal turned to come at the police, Mr. Davis said, and three officers fired more than a dozen times, hitting both men.

A version of this article appears in print on October 2, 2014, on page A29 of the New York edition with the headline: Officers Fatally Shot Man Who Intervened in a Fight.